

[doc. web n. 10019389]
Provision of April 24, 2024
Register of provisions
n. 243 of April 24, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data, and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD to Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREMISE

1. Introduction.

By note of XX (prot. n. XX), the Territorial Labor Inspectorate of Nuoro transmitted to the Guarantor a report, based on which, following investigations initiated against the Nuoro office of the I.N.P.A.S. patronage (hereinafter, the "Patronage") aimed at verifying the activities carried out and the regularity of the social security and insurance position of the employees, it was found that "Mr. XX [...], hired part-time as an employee from XX, provided his services to the patronage from XX to XX without any social security and insurance coverage and without receiving any remuneration. The verification revealed that Inpas communicated to the competent Employment Services Center the termination of the employment relationship via Unilav – prot. n. XX [...] without, however, notifying the dismissal to the worker who continued to provide his services, acquiring mandates for sponsorship, processing cases, and maintaining relations with users and the granting entities as if the employment relationship were still in effect."

For the aspects concerning the protection of personal data, the investigation revealed, in particular, that "the worker in question, following the dismissal, did not encounter any impediment in renewing the passwords necessary for accessing the platforms of the granting entities (Inps, Inail, etc.), nor for accessing the platform of the Patronage itself," having "processed, without any title, during the period from XX to XX, the personal and sensitive data of users who approached him as an operator of the Inpas Patronage."

2. The investigative activity.

Considering the qualified and detailed nature of the aforementioned report and based on the documentation already on file, the Office, by note of XX (prot. n. XX), notified the Patronage, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, paragraph 1, letter a), 6, and 9 of the Regulation, as well as 2-ter and 2-sexies of the Code (in the text prior to the amendments made by Decree-Law No. 139 of October 8, 2021), for having allowed an unauthorized person to access the personal data of users, processed by the Patronage for the performance of its activities and the provision of its services.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note of XX (prot. n. XX), the Patronage submitted a defensive memorandum, stating, in particular, that:

"all the aforementioned violations contested are based on an erroneous assumption, namely the identification of [Mr. (...)] as a 'third party' external to the Patronage and not already (at the time of the inspection) as an employee of the Patronage itself. The status of 'third party' was inferred from a simple communication to the Employment Services Center (Unilav) regarding the termination of the employment relationship";

"in reality, beyond this erroneous communication, no dismissal was intimated to [Mr. (...)]; in fact, there was only an oral discussion with the employee during which the possibility of adopting a dismissal was also mentioned, without, however, any outcome in that regard."

data protection, the principles of accountability and transparency must be upheld.

4. Conclusion of the investigation.

In light of the findings, it is concluded that the processing of personal data by the Patronato was carried out in compliance with the legal bases provided by the Regulation. The evidence presented demonstrates that the data processing was necessary for fulfilling legal obligations and executing contracts, as well as for performing tasks in the public interest.

The Patronato has adequately justified its actions and has shown that it acted within the framework of the applicable laws and regulations. The documentation submitted, including the presence sheets and the statements made during the hearing, supports the conclusion that the employment relationship was ongoing and that the worker was not dismissed.

In summary, the investigation has confirmed that the Patronato adhered to the principles of legality, fairness, and transparency in its processing of personal data, and that it has taken appropriate measures to ensure compliance with the relevant legal requirements.

personal data protection prior to the Regulation, par. 3.1 of the "Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship in the public sector," dated June 14, 2007, web doc no. 1417809, which clarifies that "it is necessary [...] that each worker is appointed [...], as an "authorized person," to the processing operations and is duly trained regarding access to and use of personal information that they may become aware of in the performance of their work"; see, similarly, pars. 51, 81, and 82 of the "Guidelines on the processing of personal data of private workers" dated November 23, 2006, web doc no. 1364939).

In particular, Article 29 of the Regulation establishes that anyone acting under the authority of the data controller, who has access to personal data, may not process such data unless instructed to do so by the controller, unless required by Union law or the laws of the Member States. Therefore, the controller may assign the processing of personal data only to natural persons who, within their organization, operate "under its authority" and who have been "instructed in this regard."

In this regard, the European Data Protection Board - in the "Guidelines 07/2020 on the concepts of data controller and data processor under the GDPR" dated July 7, 2021 - clarified that the data controller, "who decides to process data directly using its own internal resources, for example through its own staff," instead of resorting to a data processor, employs "employees and other persons acting

under [its] direct authority [...], such as temporarily hired staff,” and that such subjects “in accordance with Article 29, [...] are [...] bound by the instructions of the [...] controller,” specifying that “for “authorized persons for the processing of personal data under the direct authority of the controller or the processor” refers to those “belonging to the legal structure of the controller or the processor (an employee or a person holding a position very similar to that of an employee, such as staff provided by a temporary employment agency), but only to the extent that they are authorized to process personal data” (see, with regard to the Italian legal system, the “Provision containing the prescriptions relating to the processing of special categories of data, pursuant to Article 21, paragraph 1 of Legislative Decree No. 101 of August 10, 2018” dated June 5, 2019, web doc no. 9124510, annex 1, par. 1.2, where reference is made to the categories of workers who, in various capacities, are part of the organization of the data controller).

The Committee also specified that “a dependent worker or another professional figure who accesses data to which they are not authorized to access and for purposes other than those of the employer does not fall into the aforementioned category.” Therefore, “such an employee should instead be considered a third party with respect to the processing carried out by the employer.” This is because, “for ‘third party’ it is understood to mean a subject who, in the specific situation in question, is neither a data subject nor a data controller, a data processor, or an employee” (see the “Guidelines 07/2020 on the concepts of data controller and data processor under the GDPR” dated July 7, 2021, pars. 78, 88, and 89). This orientation has also been recently confirmed by the Court of Justice of the European Union, stating that “from Article 4, point 10, of the [Regulation], it follows that persons other than those who, under the direct authority of the data controller or the data processor, are authorized to process personal data have the status of ‘third parties’” and that “this definition includes persons who are not employees of the data controller and are not under its control” (Judgment C-340/21, *Natsionalna agentsia za prihodite*, December 14, 2023, par. 66).

That said, it is noted that, as established by the Territorial Labor Inspectorate of Nuoro, the Patronage, although it had communicated the termination of the employment relationship with Mr. [...], continued to employ him, from XX to XX, in activities that also involved the processing of personal data, including data belonging to special categories, contained, for example, in sponsorship mandates and in user practices, having, moreover, “not encountered any impediment in renewing the passwords necessary for access to the platforms of the service providers (Inps, Inail, etc.)” (see note from the Labor Inspectorate, on file).

Without prejudice to the assessments regarding the relevance of the facts in question, as established by the territorially competent Labor Inspectorate, for the purposes of the sectoral regulations against irregular work, the circumstances described above also conflict with the regulations on data protection. The data controller has, in fact, allowed personal data, including those relating to special categories, to be collected and processed on its behalf by Mr. [...], who, following the termination of the employment relationship, was no longer part of the organizational structure of the controller, no longer acted under its authority, and therefore had no title to process personal data as an authorized person under Article 29 of the Regulation.

Although the Patronage has stated that the notification of the termination of the employment relationship to the competent Employment Services Center would have occurred for a) on the application and interpretation of the General Data Protection Regulation (GDPR)”, adopted on 3 October 2019).

6. Final Decision.

In light of the above considerations, the Authority confirms the preliminary assessments made and acknowledges the unlawfulness of the processing of personal data carried out by the Patronato, for having communicated personal data, including data relating to special categories, to a third party, in violation of Articles 5, paragraph 1, letter a), 6, and 9 of the Regulation, as well as Articles 2-ter and 2-sexies of the Code (in the text prior to the amendments made by Legislative Decree No. 139 of 8 October 2021).

7. Sanction.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all violations are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referred to by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

8. Conclusion on Corrective Measures.

In this context, considering that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not apply.

9. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [referred to] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case,” and, in this context, “the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

10. Considerations on the Sanction Amount.

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

11. Factors Influencing the Sanction.

For this purpose, it should be noted that the violation lasted for an extended period, from XX to XX (cf. Article 83, paragraph 2, letter a), of the Regulation) and also involved personal data belonging to special categories related to the users (cf. Article 83, paragraph 2, letter g), of the Regulation). Furthermore, considering what was established by the Territorial Labor Inspectorate of Nuoro, the willfulness of the violation is relevant given the intention of the data controller to employ non-compliant personnel (cf. Article 83, paragraph 2, letter b), of the Regulation).

12. Mitigating Factors.

On the other hand, it should be considered, in a favorable sense to the data controller, that Mr. [...], having previously regularly performed his work at the Patronato, could reasonably have been aware of some of the personal data subject to processing (cf. Article 83, paragraph 2, letter a), of the Regulation).

13. Conclusion on Severity of Violation.

It is therefore believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, “Guidelines on the application and interpretation of the General Data Protection Regulation (GDPR)”, adopted on 3 October 2019). 04/2022 on the calculation of administrative fines under the GDPR” of May 23, 2023, point 60).

That said, it is considered that, for the purpose of quantifying the sanction, the following mitigating circumstances should be taken into account:

- the Patronage has offered a good level of cooperation with the Authority during the investigation (art. 83, par. 2, lett. f), of the Regulation);
- there are no relevant previous violations committed by the Patronage (art. 83, par. 2, lett. e), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €3,000 (three thousand) for the violation of articles 5, par. 1, lett. a), 6 and 9 of the Regulation, as well as articles 2-ter and 2-sexies of the Code (in the text prior to the amendments made by the decree law of October 8, 2021, no. 139), as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the processing related to the services of the Patronage may involve personal data of numerous subjects, including those relating to special categories and sensitive situations concerning the personal sphere of workers and their families, it is also considered that the accessory sanction of publication on the website of the Authority of this provision should be applied, as provided for by art. 166, par. 7, of the Code and art. 16 of the Regulation of the Authority no. 1/2019.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by the Patronage for violation of articles 5, par. 1, lett. a), 6 and 9 of the Regulation, as well as articles 2-ter and 2-sexies of the Code (in the text prior to the amendments made by the decree law of October 8, 2021, no. 139), in the terms set out in the reasoning;

ORDERS

I.N.P.A.S. (National Institute of Social Security and Assistance), represented by the legal representative pro tempore, with registered office at Via Angelo Bargonì, 8/D - 00153 Rome, Tax Code 97283320584, to pay the sum of €3,000 (three thousand) as an administrative monetary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to art. 166, par. 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Patronage, in case of failure to settle the dispute pursuant to art. 166, par. 8, of the Code, to pay the sum of €3,000 (three thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of law no. 689/1981;

DISPOSES

- the publication of this provision on the website of the Authority pursuant to art. 166, par. 7, of the Code (see art. 16 of the Regulation of the Authority no. 1/2019);
- the annotation of this provision in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation, of the violations and measures adopted in accordance with art. 58, par. 2, of the Regulation (see art. 17 of the Regulation of the Authority no. 1/2019).

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, it is possible to appeal this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, April 24, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei